

# California Executor Checklist

The 12 steps every California executor needs to complete when selling probate real property, in the right order, with the right timing. Written by a licensed California real estate broker and attorney.

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## STEP 01

### Secure and protect the property immediately

Before anything else, secure the estate's real property. Change locks, ensure utilities remain active, verify homeowner's insurance is in force and notify the insurer of the owner's death, and address any urgent maintenance issues. A vacant property is a liability, vandalism, water damage, and squatters can become serious problems quickly.

■ *Immediately*

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## STEP 02

### File a petition for probate with the Superior Court

File the petition for probate in the Superior Court of the county where the deceased resided. Submit the original will (if any), a certified copy of the death certificate, and the required filing fees. The court will set a hearing date, typically 4-8 weeks out, to appoint you as executor and admit the will to probate.

■ *Within 30 days*

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## STEP 03

### Obtain Letters Testamentary from the court

After the initial hearing, the court issues Letters Testamentary, the document that gives you legal authority to act on behalf of the estate. You will need multiple certified copies. Banks, title companies, government agencies, and others will require an original certified copy before dealing with you as executor. Order at least 6-8 copies.

■ *After first hearing*

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## STEP 04

### Determine whether IAEA authority applies

Ask your probate attorney whether the estate qualifies for Independent Administration of Estates Act (IAEA) authority. Under IAEA, you may be able to sell real property without court confirmation, following a simpler notice process instead. If IAEA applies, the sale process is significantly faster and less expensive. This determination should happen at the initial hearing.

■ *At first hearing*

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## STEP 05

### Obtain a probate referee appraisal of all real property

The court appoints a probate referee, a licensed appraiser, to value all estate assets as of the date of death. For real property, the probate referee's appraised value sets the minimum acceptable sale price (any offer must be at least 90% of appraised value for court confirmation). The referee's fee is set by statute at 0.1% of the appraised value.

■ *Within 60 days*

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#### STEP 06

### **Publish notice to creditors**

California law requires that notice to creditors be published in a newspaper of general circulation in the county where the estate is being administered. Creditors then have a limited period, generally 4 months from the date Letters Testamentary are issued, or 60 days from notice, whichever is later, to file claims against the estate. Do not distribute assets or sell property without accounting for potential creditor claims.

■ *Within 30 days of appointment*

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#### STEP 07

### **Hire a probate real estate agent and list the property**

Select an agent with specific experience in California probate sales. They must understand court confirmation requirements, know how to set a list price that satisfies the 90% rule while attracting genuine buyers, and be able to manage the longer-than-normal escrow period. List the property once you have Letters Testamentary, you do not need to wait for the full probate process to complete before listing.

■ *After receiving Letters*

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#### STEP 08

### **Accept an offer and file a petition for court confirmation**

When you accept an offer, file a petition for court confirmation of the sale with the probate court. The court will set a hearing date, typically 4-8 weeks out. Notice of the hearing must be mailed to all heirs, beneficiaries, and the buyer at least 15 days before the hearing. At the hearing, the court will confirm the sale or accept overbids.

■ *After offer accepted*

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#### STEP 09

### **Attend the court confirmation hearing**

Appear at the court confirmation hearing with your probate attorney. Be prepared for overbidding, any member of the public can appear and submit an overbid. The minimum overbid is the accepted price plus the greater of \$500 or 10% of the first \$10,000 plus 5% of the balance. If overbids occur, the court conducts an open auction. The court then issues an Order Confirming Sale.

■ *Per court schedule*

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#### STEP 10

### **Close escrow and deposit proceeds into estate account**

After court confirmation, close escrow in the normal way. The title company will require a certified copy of the Order Confirming Sale. Sale proceeds are deposited into the estate's bank account, not distributed to heirs directly. Keep detailed records of all closing costs, agent commissions, and net proceeds for the final accounting.

■ *After court order*

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#### STEP 11

### File required tax returns for the estate

Tax obligations include the deceased's final individual income tax return, a fiduciary income tax return for the estate (Form 1041 / California Form 541) for each year the estate has income including from the property sale, and potentially a federal estate tax return if the gross estate exceeds the federal exemption. Work with a CPA experienced in estate taxation, these returns have unique rules and deadlines.

■ *Per IRS deadlines*

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#### STEP 12

### File petition for final distribution and close the estate

After all debts, taxes, and expenses are paid, file a petition for final distribution with the court. This includes a final accounting of all estate receipts and disbursements, proposed distributions to heirs, and executor compensation. After the court approves the final distribution, distribute assets to heirs, obtain signed receipts, and file for discharge. Your duties as executor are complete.

■ *End of probate*

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**William B. Plevy**, California Real Estate Broker (DRE #01956776) and member of the California State Bar. Wolf Allies is a real estate referral platform connecting executors, administrators, and families with specialists in probate real property sales, free, and it never affects what you pay your agent.

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